
Minimum Earned Premium:	N/A
Policy Premium:	
• Gross Premium:	\$7,017.00
• Policy Fee:	\$250.00
• TRIA:	\$0.00
• Tax:	\$0.00
Total Due from Client:	\$7,267.00

Surplus Lines Tax:	To be administered and paid by the insured at the following rates: - South Dakota Surplus Lines Tax of 2.5% Applied on the taxable proportion of the premium payable in accordance with the Declarations
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Insurer:	Underwritten by Nexus Specialty Inc on behalf of certain Underwriters at Lloyd's London and Hamilton Insurance DAC, under Binding Authority Unique Market Reference B1820WLS25D956
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AM Best Rating:	Lloyd's of London: A (Excellent)
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Coverage & Limit Schedule

If any of the coverages described below are left blank or "N/A" is indicated, such coverage including any applicable Insuring Agreement, Limit of Liability/Insurance, Sublimit of Liability/Insurance or Additional Limit of Liability/Insurance, and any other reference thereto are deleted from the policy.

	Insuring Agreement	Limit		Retention	Retroactive Date
A. Third Party Liability Coverages					
A.1	Privacy and Security Liability	\$1,000,000 \$1,000,000	each Claim in the aggregate	\$10,000	Full Prior Acts
A.2	Privacy Regulatory Defense	\$1,000,000 \$1,000,000	each Claim in the aggregate	\$10,000	Full Prior Acts
A.3	PCI-DSS Loss	\$1,000,000 \$1,000,000	each Claim in the aggregate	\$10,000	Full Prior Acts
A.4	Multimedia Liability	\$1,000,000 \$1,000,000	each Claim in the aggregate	\$10,000	Full Prior Acts
A.5	Contingent Bodily Injury and Property Damage	\$250,000 \$250,000	each Claim in the aggregate	\$10,000	Full Prior Acts
B. First Party Coverages					
B.1	Breach Response	\$1,000,000 \$1,000,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.1a	Computer Forensic Costs	\$1,000,000 \$1,000,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.1b	Notification Expenses	\$1,000,000 \$1,000,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.1c	Breach Legal and Consulting Fees	\$1,000,000 \$1,000,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.1d	Public Relations Expenses	\$1,000,000 \$1,000,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.1e	Post Remediation Costs	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.2	Cyber Extortion & Ransomware	\$1,000,000	each Extortion Event/Ransomware Threat in the aggregate	\$10,000	Full Prior Acts
B.3	Data Recovery	\$1,000,000 \$1,000,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.4	Hardware Replacement	\$1,000,000 \$1,000,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.5	Business Interruption Loss	\$1,000,000	in the aggregate	amount of Business Interruption Loss Incurred during Waiting Period	Full Prior Acts
B.6	Dependent Business Interruption Loss	\$1,000,000	in the aggregate	amount of Dependent Business Interruption Loss Incurred	Full Prior Acts

				during Waiting Period	
B.7	Reputational Damage	\$1,000,000 \$1,000,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.8	Proof of Loss Preparation Costs	\$150,000 \$150,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.9	Cyber Crime	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.9a	Computer Fraud	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.9b	Social Engineering	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.9c	Invoice Manipulation	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.9d	Telecommunication Fraud	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.9e	Social Engineering of Client Funds	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.9f	Social Engineering Theft of Management Funds	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.9g	Funds Transfer Fraud	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts
B.10	First Response	\$250,000 \$250,000	each Event in the aggregate	\$10,000	Full Prior Acts

Supplemental Coverages

If any of the supplemental coverages described below are left blank or "N/A" is indicated, such coverage including any applicable Insuring Agreement, Sublimit of Liability/Insurance, and any other reference thereto are deleted from the policy.

Insuring Agreement		Limit	Retention
C.1	Court Attendance Costs	\$250,000 each day \$250,000 in the aggregate	\$0
C.2	Criminal Reward	\$250,000 in the aggregate	\$0
C.3	Cryptojacking	\$1,000,000 each Event \$1,000,000 in the aggregate	\$10,000

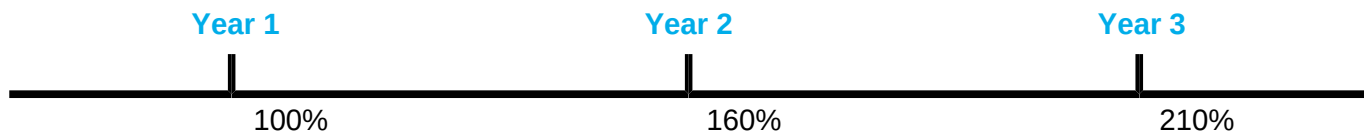
Coverages by Endorsement:

If any of the coverages described below are left blank or "N/A" is indicated, such coverage including any applicable Insuring Agreement, Limit of Liability/Insurance, Sublimit of Liability/Insurance or Additional Limit of Liability/Insurance, and any other reference thereto are deleted from the policy.

	Limit/ Sub-Limit	Retention/ Sub-Retention
Breach Response Outside the Limit	\$1,000,000	\$10,000
Bodily Injury and Property Damage – 1st Party	\$250,000	\$10,000
HIPPA Corrective Action Plan	\$100,000	\$10,000
TCPA	\$50,000	\$10,000

Mitigation	\$250,000	\$10,000
Full Non-IT	\$1,000,000	\$10,000

Optional Extended Reporting Period:



Schedule of Forms and Endorsements:

Policyholder Notices and Policy Form

Nexus Cyber Policy, NCP 2025 V1.0
 NCP 0002 | Breach Response Outside Limit
 NCP 0003 | Bodily Injury and Property Damage – 1st Party
 NCP 0004 | Affirmative AI Coverage Clarification Endorsement
 NCP 0005 | HIPAA Corrective Action Plan Endorsement
 NCP 0010 | Law Enforcement Cooperation Endorsement
 NCP 0013 | TCPA Defense Expenses
 NCP 0016 | 1st Party And 3rd Party Mitigation Expense
 NCP 0019 | Dependent Business Interruption (Non-It Providers)
 NCP 0099 | Prior Knowledge Exclusion Endorsement
 LMA 5020A | Service of Suit Clause (U.S.A.)
 LMA 5096 | Several Liability Clause
 LMA 9077 | South Dakota Surplus Lines Notice

**Subjectivities:**

The Cyber Insurance quote is contingent upon Nexus Inc. receiving, reviewing, and accepting the following information prior to incepting coverage. If the information is not provided, Nexus may consider the quote invalid and revoke the terms. After reviewing the requested information, if there is a material change in exposure, Nexus may alter the terms or revoke the quote in its entirety.

Prior to Bind:

- Completed TRIA Acceptance or Rejection Form
- Completed, signed and dated Nexus Warranty Statement with favorable review by Us.
- Confirmation MFA is enforced for remote access to email.
- Confirmation the 2023 claim has been closed.
- Confirmation the Insured maintains at least weekly backups.

Post Bind:

- Completed Surplus Lines Broker License Detail

Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0002	02/20/2026	

BREACH RESPONSE OUTSIDE LIMIT

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged, it is hereby understood and agreed that the Policy is amended as follows:

Breach Response Outside Limit SCHEDULE

COVERAGE	LIMIT OF INSURANCE
Additional Breach Response Limit	\$1,000,000 Aggregate

1. ADDITIONAL BREACH RESPONSE LIMIT

The **Insurer** will pay the **Additional Breach Response Limit** incurred by the **Insured Organization** to respond to a **Cyber Incident** or **Privacy and Security Incident** first **Discovered** during the **Policy Period**, subject to the Aggregate Retention set forth in Item 10.II. of the Declarations. The **Additional Breach Response Limit** is in addition to and shall not erode the Maximum Policy Aggregate Limit.

2. APPLICATION OF ADDITIONAL BREACH RESPONSE LIMIT

A. The **Additional Breach Response Limit** shall apply solely to the following components of **Cyber Incident Loss** as defined in Section II.15 of the Policy:

- i. **Computer Forensic Costs**
- ii. **Notification Expenses**
- iii. **Breach Legal and Consulting Fees**

B. The **Additional Breach Response Limit** shall be:

1. One single additional limit of insurance applicable solely to the costs described in Section II.A above regardless of the number of **Cyber Incidents** or **Privacy and Security Incidents** discovered during the **Policy Period**; and

2. In addition to, and not part of, the Insuring Agreement I.B.1. Breach Response Limit stated in the Declarations and the Maximum Policy Aggregate Limit.
- C. The **Insured Organization** may, at its discretion, elect to have any costs described in Section II.A above apply to either:
1. The **Additional Breach Response Limit**; or
 2. The Insuring Agreement I.B.1. Breach Response Limit, if still available.
- This election may be made after satisfaction of the Aggregate Retention set forth in Item 9.II. of the Declarations.
- D. Upon exhaustion of the **Additional Breach Response Limit**, any further payment by the **Insurer** of costs described in Section II.A above shall:
1. Be part of, and not in addition to, the Insuring Agreement I.B.1. Breach Response Limit; and
 2. Reduce, and may exhaust, the Insuring Agreement I.B.1. Breach Response Limit and the Maximum Policy Aggregate Limit.

3. GENERAL PROVISIONS

- A. All **Cyber Incidents** and **Privacy and Security Incidents** involving **Related Acts** shall be considered a single incident first **Discovered** on the date the first such incident is **Discovered** by a member of **Management**, for purposes of the **Additional Breach Response Limit**.
- B. The Aggregate Retention set forth in Item 10.II. of the Declarations shall apply to coverage under this endorsement. Once the Aggregate Retention has been satisfied, the **Insured Organization** shall have access to both:
1. The remaining coverage under the Maximum Policy Aggregate Limit; and
 2. The full **Additional Breach Response Limit**.
- C. The definitions, terms, conditions, and exclusions of the Policy apply to the coverage provided by this Endorsement, unless modified herein.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0003	02/20/2026	

BODILY INJURY AND PROPERTY DAMAGE – 1ST PARTY

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged, it is hereby understood and agreed that the Policy is amended as follows:

1. Item 10 of the Declarations is amended to include the following:

Bodily Injury and Property Damage – 1st Party

Insuring Agreement	Limit of Insurance	Retention
Bodily Injury and Property Damage – 1st Party	\$250,000 Aggregate	\$10,000 Each Event

2. Section I.B. FIRST PARTY COVERAGES is amended by the addition of the following Insuring Agreement:

Direct Bodily Injury and Property Damage

The **Insurer** will pay for **Direct Bodily Injury and Property Damage Expenses** incurred by an **Insured Organization** resulting directly from a **Cyber Incident** first **Discovered** during the **Policy Period** and reported to the **Insurer** in writing in accordance with Section VI. Reporting of Claims and Events.

3. Section II. DEFINITIONS is amended by the addition of the following definition:

Direct Bodily Injury and Property Damage Expenses means reasonable and necessary first-party costs and expenses incurred by an **Insured Organization**, with the **Insurer's** consent, to remediate, mitigate, or respond to:

- a. actual bodily injury, sickness, disease, or death of any **Insured Organization's** director, officer, employee, or other person physically present on the **Insured Organization's** premises; or
- b. actual physical damage to, destruction of, or loss of use of tangible property owned, leased, or otherwise under the operational control of an **Insured Organization**; provided such bodily injury or property damage directly results from a **Cyber Incident** affecting an **Insured Organization's Computer Systems**.

Direct Bodily Injury and Property Damage Expenses include:

- a. emergency medical expenses;
- b. costs to repair or replace damaged tangible property owned by the **Insured Organization**;
- c. temporary facility costs necessitated by damage to the **Insured Organization's** premises;
- d. costs of emergency response services; and
- e. other similar expenses incurred directly by the **Insured Organization**.

Direct Bodily Injury and Property Damage Expenses do not include:

- a. any amounts covered under Insuring Agreement I.A.5. Contingent Bodily Injury and Property Damage;
- b. any amounts constituting **Damages** paid or payable to third parties;
- c. any **Claim Expenses**;
- d. any costs or expenses for hardware or software upgrades, improvements, or remediation beyond restoration to the pre-incident state;
- e. any amounts constituting **Business Interruption Loss** or **Dependent Business Interruption Loss**;
- f. any wages, benefits, or overhead of the **Insured Organization**; or
- g. any regulatory fines, penalties, or assessments.

4. The following is added to Section IV. RELATED INCIDENTS:

- D. If a **Cyber Incident** results in both a **Claim** covered under Insuring Agreement I.A.5. Contingent Bodily Injury and Property Damage and **Direct Bodily Injury and Property Damage Expenses** covered under Insuring Agreement I.B. Direct Bodily Injury and Property Damage, any payment made under one Insuring Agreement shall reduce the available limits under the other Insuring Agreement to the extent the loss arises from the same **Cyber Incident**.

5. For purposes of the coverage provided under Insuring Agreement I.B Direct Bodily Injury and Property Damage only, the following exclusions under Section V. EXCLUSIONS shall not apply:
- a. Exclusion E. Bodily Injury
 - b. Exclusion Y. Property Damage

However, these exclusions shall continue to apply to all other Insuring Agreements, including Insuring Agreement I.A.5. Contingent Bodily Injury and Property Damage.

6. In addition to the exclusions in Section V. EXCLUSIONS, with respect to Insuring Agreement I.B. Direct Bodily Injury and Property Damage, this Policy shall not apply to:
- a. Any **Claim** or demand made against an **Insured** by a third party;
 - b. Any liability to third parties for bodily injury or property damage, which is covered exclusively under Insuring Agreement I.A.5. Contingent Bodily Injury and Property Damage;
 - c. Any bodily injury or property damage not directly resulting from a **Cyber Incident** affecting an **Insured Organization's Computer Systems**;
 - d. Any bodily injury or property damage to the extent coverage is provided by the **Insured Organization's** property, casualty, general liability, workers' compensation, or other insurance policies; or
 - e. Any costs or expenses incurred to update, upgrade, or improve any property, premises, or systems beyond their condition immediately prior to the **Cyber Incident**.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0004	02/20/2026	

AFFIRMATIVE AI COVERAGE CLARIFICATION

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged for this Policy it is hereby understood and agreed that:

1. The following Definitions in SECTION II. DEFINITIONS are amended by adding the language shown below without deleting or replacing any existing policy language:

12. Cyber Crime Event In addition to all existing provisions within this definition, the following sub-definitions are enhanced as follows:

- a. Computer Fraud** - is expanded to include incidents involving the use of artificial intelligence technologies to compromise, misuse, or gain unauthorized access to an **Insured Organization's Computer Systems**
- b. Social Engineering** - is expanded to include deception facilitated by AI-generated deepfakes, voice synthesis, or other synthetic content created to impersonate authorized parties.
- c. Invoice Manipulation** - is expanded to include manipulation conducted using AI tools or systems.
- d. Telecommunications Fraud** - is expanded to include fraud perpetrated using AI voice synthesis or other AI technologies.
- e. Social Engineering of Clients Funds** - is expanded to include social engineering facilitated by AI technologies that create convincing impersonations.
- f. Social Engineering Theft of Management Funds** - is expanded to include theft through the use of AI-enabled impersonation technologies.
- g. Funds Transfer Fraud** - is expanded to include fraud involving AI-powered impersonation or synthesized communications.

14. Cyber Incident In addition to all existing provisions within this definition, **Cyber Incident** is expanded to include:

g. incidents outlined in a. to f. above involving artificial intelligence technologies, including unauthorized or malicious use of AI systems, AI system malfunctions, AI-powered cyber attacks, and data breaches facilitated by AI technologies.

27. Extortion Event In addition to all existing provisions within this definition, **Extortion Event** is expanded to include threats that utilize or are facilitated by AI technologies.

56. Privacy and Security Incident In addition to all existing provisions within this definition, **Privacy and Security Incident** is expanded to include: g. incidents outlined in a. to f. above involving artificial intelligence technologies, including unauthorized access to **Protected Personal Information** through AI systems, privacy violations resulting from AI-based data processing or profiling, and security breaches facilitated by AI technologies.

60. Ransomware Threat In addition to all existing provisions within this definition, **Ransomware Threat** is expanded to include threats that utilize or are facilitated by AI technologies.

2. The Policy provides coverage for **Claims, Events, Extortion Events, Ransomware Threats, or Losses** that involve, result from, or are facilitated by artificial intelligence technologies, provided that such **Claims, Events, Extortion Events, Ransomware Threats, or Losses** otherwise qualify for coverage under the terms and conditions of the Policy. No Exclusion in Section V shall apply to a **Claim** or **Loss** solely because artificial intelligence was involved in the incident, unless specifically stated to the contrary.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0005	02/20/2026	

HIPAA CORRECTIVE ACTION PLAN ENDORSEMENT

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged for this Policy it is hereby understood and agreed that:

- Item 10 of the Declarations is amended by the addition of the following:

HIPAA CORRECTIVE ACTION PLAN SCHEDULE

Coverage	Limit of Insurance	Retention
HIPAA Corrective Action Plan	\$100,000 Aggregate	\$10,000 Each Event/Claim

- The following is added to Section I.C. SUPPLEMENTAL COVERAGES:

HIPAA CORRECTIVE ACTION PLAN

The **Insurer** will pay on behalf of an **Insured Organization** all **HIPAA Corrective Action Plan Costs** incurred by an **Insured Organization** as a direct result of a **Cyber Incident** or **Privacy and Security Incident** first **Discovered** during the **Policy Period**, reported to the **Insurer** in writing in accordance with Section VI. Reporting of Claims and Events, and where such **Cyber Incident** or **Privacy and Security Incident** has resulted in a **HIPAA Corrective Action Plan**.

- The following definitions are added to Section II. DEFINITIONS:

HIPAA Corrective Action Plan means a written plan required by the U.S. Department of Health and Human Services, Office for Civil Rights, that an **Insured Organization** must implement to address potential violations of the Health Insurance Portability and Accountability Act of 1996 (HIPAA) or the Health Information Technology for Economic and Clinical Health Act (HITECH).

HIPAA Corrective Action Plan Costs means reasonable and necessary costs, fees and expenses incurred by an **Insured Organization**, with the **Insurer's** consent, to comply with a **HIPAA Corrective Action Plan**, including but not limited to:

- the development of HIPAA-compliant information security document sets;
- the completion of a HIPAA compliance audit;
- costs associated with completing an information security risk assessment; or

d) costs associated with the implementation of a security awareness training program.

HIPAA Corrective Action Plan Costs do not include:

- a) fines, penalties or sanctions imposed against an **Insured Organization**;
- b) taxes imposed against an **Insured Organization**;
- c) costs incurred by an **Insured Organization** to comply with any order for non-monetary (including injunctive) relief;
- d) disgorgement of profits, accounting of profits, or other compensation paid to which an **Insured** was not legally entitled; or
- e) amounts not insurable under the law pursuant to which this Policy shall be construed.

4. **HIPAA Corrective Action Plan Costs** are added to the definition of **Loss** under Section II. DEFINITIONS.

5. For purposes of the coverage provided by this endorsement, the **HIPAA Corrective Action Plan Costs** shall be part of and not in addition to the Maximum Policy Aggregate Limit. The HIPAA Corrective Action Plan Limit shown in 1. SCHEDULE OF COVERAGE above is a sublimit and represents the maximum amount the **Insurer** will pay for all **HIPAA Corrective Action Plan Costs** combined.

6. For purposes of the coverage provided by this endorsement, the following exclusion is added to Section V. EXCLUSIONS:

HIPAA/HITECH Prior Non-Compliance

This Policy does not apply to any **HIPAA Corrective Action Plan Costs** based upon, arising out of, or attributable to any actual or alleged:

- 1. **Cyber Incident** or **Privacy and Security Incident** that occurred prior to the **Retroactive Date**;
or
- 2. non-compliance with HIPAA or HITECH that was known to any member of **Management** prior to the inception date of the first NEXUS Cyber Policy issued by the **Insurer**.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0010	02/20/2026	

LAW ENFORCEMENT COOPERATION

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged for this Policy it is hereby understood and agreed that:

1. Notwithstanding anything in Section VI. REPORTING OF CLAIMS AND EVENTS to the contrary, this Policy is amended by the addition of the following:
 - A. If an **Insured** receives a request from a law enforcement authority to keep certain information about an actual or suspected **Cyber Incident, Privacy and Security Incident, Information Security Breach, Multimedia Liability Wrongful Act, Event, Extortion Event, or Ransomware Threat** confidential, and is unable to provide written notice to the **Insurer** pursuant to Section VI. due to such request, then notice of such **Incident** will be considered timely under this Policy if:
 1. The **Insured** requests permission from such law enforcement authority to share such information with the **Insurer** as soon as practicable following the receipt of such a request;
 2. The **Insured** only withholds from the **Insurer** that portion of the information that the law enforcement authority has instructed such **Insured** not to share with the **Insurer**; and
 3. The **Insured** provides the **Insurer** with a full notice of such **Cyber Incident, Privacy and Security Incident, Information Security Breach, Multimedia Liability Wrongful Act, Event, Extortion Event, Ransomware Threat, or Claim** as soon as legally permitted after the law enforcement authority permits such **Insured** to share the full notice.
 - B. Furthermore, with respect to any failure or delay by the **Insured** in providing information to the **Insurer** following receipt of a law enforcement authority request as set forth in part A) of this endorsement:
 1. The **Insured's** failure to provide documentation to the **Insurer**, or otherwise cooperate with the **Insurer**, will not be the basis for a denial of coverage for any **Incident** under this Policy, but only to the extent the procedure set forth in part A) of this endorsement is followed in connection with such law enforcement request.

Notwithstanding the above, no coverage shall be afforded for any **Incident** if the information withheld relating to such **Incident** is subject to exclusion under Section V. EXCLUSIONS, or any other limitation in this Policy relating to any misrepresentations provided in the **Application**.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0013	02/20/2026	

TCPA DEFENSE EXPENSES

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged for this Policy it is hereby understood and agreed that:

1. Item 10 of the Declarations is amended by the addition of the following:

TCPA DEFENSE EXPENSES SCHEDULE

Coverage	Limit of Insurance	Retention
TCPA Defense Expenses	\$50,000 Aggregate	\$10,000 Each Event

2. Section II. DEFINITIONS is amended to include the following definition:

TCPA Defense Expenses means **Claim Expenses** incurred by an Insured in the investigation, adjustment, defense, or appeal of a **Claim** alleging violations of the Telephone Consumer Protection Act of 1991 (TCPA), as amended, or any federal, state, local, or foreign laws or regulations relating to unsolicited telemarketing, text messaging, faxes, or other communications.

3. In Section V. EXCLUSIONS, exclusion B. Unsolicited Communications is deleted in its entirety and replaced with the following:

Unsolicited Communications

1. Unsolicited electronic dissemination of faxes, emails, text messages, or other communications by or on behalf of an Insured to multiple actual or prospective customers of an Insured or any other third party, including but not limited to actions brought under the Telephone Consumer Protection Act ("TCPA"), any federal or state anti-spam statutes, or any other local, state, federal, common, or foreign laws or legislation relating to a person's or entity's right of seclusion; however, the Insurer will pay **TCPA Defense Expenses** incurred, subject to the sublimit of insurance shown in the schedule above, which is part of and not in addition to the Maximum Policy Aggregate Limit, because of a Claim alleging a violation of TCPA, resulting from a covered Event.
2. This limited coverage for **TCPA Defense Expenses** will not apply to any **Claim** based upon, arising out of, or attributable to:

- a) any willful, deliberate, malicious, fraudulent, dishonest, or criminal act or omission by any Insured; or
- b) any violation of the CAN-SPAM Act of 2003, as amended, or any rules or regulations promulgated thereunder.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0016	02/20/2026	

1st Party and 3rd Party Mitigation Expense

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged for this Policy it is hereby understood and agreed that:

1. The following is added to Item [#] of the Declarations:

MITIGATION EXPENSE SCHEDULE

Coverage	Limit of Insurance	Retention
Third Party Mitigation Expense	\$250,000 Aggregate	\$10,000 Each Claim
First Party Mitigation Expense	\$250,000 Aggregate	\$10,000 Each Event

2. The following Coverage is added to the Policy:

MITIGATION EXPENSE COVERAGE

A. Third Party Mitigation Expense

The **Insurer** will pay **Third Party Mitigation Expense** incurred by an **Insured** because of circumstances that could reasonably be expected to result in a **Claim** first made during the **Policy Period** and reported to the **Insurer** in accordance with Section VI. Reporting of Claims and Events, that would be covered under Insuring Agreement I.A.1. Privacy and Security Liability, Insuring Agreement I.A.4. Multimedia Liability, or the Technology Errors and Omissions Liability Endorsement, if applicable.

B. First Party Mitigation Expense

The **Insurer** will pay **First Party Mitigation Expense** incurred by an **Insured Organization** because of an **Event** first **Discovered** during the **Policy Period** and reported to the **Insurer**

in accordance with Section VI. Reporting of Claims and Events, that is covered or could reasonably be expected to result in a covered **Loss** under any applicable **First Party Insuring Agreement**.

3. Section II. DEFINITIONS is amended to include the following:

Third Party Mitigation Expense means reasonable and necessary expenses incurred by an **Insured**, with the **Insurer's** prior written consent, which the **Insurer** agrees, in its reasonable discretion, are necessary to:

- a. Avoid or mitigate potential **Damages** or **Claim Expenses** under a **Third Party Liability Insuring Agreement** that would likely equal or exceed the **Third Party Mitigation Expense**; or
- b. Prevent or minimize the possibility of a **Claim** that would be covered under a **Third Party Liability Insuring Agreement**.

Third Party Mitigation Expense includes but is not limited to:

1. The reasonable and necessary cost to modify, remediate, or correct a product or service provided to a **Client**;
2. The reasonable and necessary cost to comply with a contract to avoid a **Claim** or breach of contract;
3. Amounts paid to settle a dispute with a **Client** prior to a **Claim** being made, if such settlement is likely to avoid a larger **Claim**; or
4. The reasonable and necessary cost to correct an error in the rendering of **Technology Professional Services** or in **Technology Products** before such error results in a covered **Claim**.

Third Party Mitigation Expense does not include:

1. Lost profits, lost business, lost revenue, or lost opportunities;
2. Fees or receivables payable to any **Insured**;
3. Any overhead, employee compensation, or cost overrun;
4. Any **Loss** under any other Coverage regardless of whether such other Coverage is purchased; or
5. Amounts that constitute the cost of doing business.

First Party Mitigation Expense means reasonable and necessary expenses incurred by an **Insured Organization**, with the **Insurer's** prior written consent, which the **Insurer** agrees, in its reasonable discretion, are necessary to:

- a. Avoid or mitigate potential **Loss** under a **First Party Insuring Agreement** that would likely equal or exceed the **First Party Mitigation Expense**; or

- b. Prevent or minimize the severity or impact of an **Event** that would be covered under a **First Party Insuring Agreement**.

First Party Mitigation Expense includes but is not limited to:

1. Emergency measures to prevent data loss, system outage, or business interruption;
2. Preemptive security enhancements directly related to a specific, imminent threat, provided such enhancements: (1) are necessitated by an identified threat that poses clear and present danger within 72 hours; (2) would not have been implemented absent the specific threat; (3) do not exceed 150% of restoration costs; and (4) represent the minimum modification necessary to counter the threat;
3. Temporary workarounds to maintain critical business functions during remediation of an **Event**; or
4. Costs to prevent the escalation of an emerging **Cyber Incident** before it fully materializes.

First Party Mitigation Expense does not include:

1. Lost profits, lost business, lost revenue, or lost opportunities;
2. Fees or receivables payable to any **Insured**;
3. Any overhead, employee compensation, or cost overrun;
4. Any **Loss** under any other Coverage regardless of whether such other Coverage is purchased;
5. Costs to upgrade or improve a **Computer System** beyond its condition prior to the **Event**, except where such costs constitute preemptive security enhancements that are: (1) directly necessitated by a specific, identified threat; (2) would not have been implemented absent such threat; (3) do not exceed 150% of restoration costs; and (4) represent the minimum modification necessary to counter the threat; or
6. Amounts that constitute the cost of doing business.

Imminent Threat means a credible and specific threat to an **Insured Organization's Computer System** that: (a) has been identified through reliable threat intelligence or security monitoring; (b) poses clear and present danger of causing a covered **Event** within 72 hours if not immediately addressed; (c) cannot reasonably be mitigated through existing security measures; and (d) requires immediate action to prevent or minimize potential **Loss**.

4. Mitigation Expense Conditions

A. As a condition precedent to coverage under this Endorsement, an **Insured** must:

1. Notify the **Insurer** in writing of:
 - a. The circumstances that could reasonably be expected to give rise to a Claim for Third Party Mitigation Expense; or

- b. The Event that may give rise to a First Party Mitigation Expense; In both cases, as soon as practicable after becoming aware of such circumstances or Discovery of such Event;
 2. Notwithstanding paragraph 1 above, in cases involving an **Imminent Threat**, an **Insured Organization** may immediately implement necessary **First Party Mitigation Expense** measures without prior consent, provided that:
 - a. The **Insured Organization** notifies the **Insurer** within 48 hours of implementing such measures;
 - b. The **Insured Organization** provides detailed documentation of:
 1. The nature and credibility of the **Imminent Threat**;
 2. The specific measures taken and their costs;
 3. Evidence that the threat could not be addressed through existing security measures;
 4. Justification that immediate action was necessary to prevent imminent **Loss**;
 - c. The total emergency expenses do not exceed **\$25,000** per **Event** without prior **Insurer** consent;
 - d. The **Insurer** retroactively approves the expenses within 10 business days of notification as reasonable and necessary under the circumstances.
 3. **Standard Approval Requirements** (for non-emergency situations): Demonstrate to the **Insurer's** reasonable satisfaction that: (a) The proposed mitigation expenses are reasonable and necessary; (b) Such expenses will likely reduce or eliminate a covered **Loss** that would otherwise be incurred; (c) The amount of such **Loss** would likely equal or exceed the amount of the mitigation expenses; and (d) Such expenses cannot be covered elsewhere under the Policy.
 4. **Prior Written Consent** (for non-emergency situations): Obtain the **Insurer's** prior written consent before incurring any **Third Party Mitigation Expense** or **First Party Mitigation Expense**, except as provided in the Emergency Response Exception above. The **Insurer** shall not unreasonably withhold such consent.
- B. The **Insurer** has no obligation to recommend or identify potential mitigation activities, but may do so at its sole discretion.
- C. The decision to consent to any **Third Party Mitigation Expense** or **First Party Mitigation Expense** remains at the **Insurer's** sole discretion, but such consent shall not be unreasonably withheld.
5. Limits and Retentions
- a. The Limits of Insurance for **Third Party Mitigation Expense** and **First Party Mitigation Expense** shown in the Mitigation Expense Schedule are part of, and not in addition to, the Maximum Policy Aggregate Limit and any applicable Insuring Agreement Limits.
 - b. The Retention for **Third Party Mitigation Expense** shown in the Mitigation Expense Schedule applies to each set of circumstances that could reasonably be expected to result

in a **Claim**. The Retention for **First Party Mitigation Expense** shown in the Mitigation Expense Schedule applies to each **Event**.

- c. **Emergency Response Sub-limit:** The Emergency Response Sub-limit of \$[INSERT EMERGENCY LIMIT] per **Event** applies to **First Party Mitigation Expense** incurred under the Emergency Response Exception and is part of, not in addition to, the overall **First Party Mitigation Expense** limit.
- d. If the Mitigation Expense Coverage Limits of Insurance and Retentions are not shown on the Declarations, the Declarations are amended by the addition of such Coverage Limits of Insurance and Retentions as shown in the Mitigation Expense Schedule above.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0019	02/20/2026	

Dependent Business Interruption (Non-IT Providers)

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged, it is hereby understood and agreed that the Policy is amended as follows:

NON-IT SERVICE PROVIDER COVERAGE SCHEDULE

Coverage	Sublimit	Retention	Waiting Period
Dependent Business Interruption (Non-IT Providers)	\$1,000,000 Aggregate	\$10,000 Each Event	8 Hours

1. Section II. DEFINITIONS, definition 70. **Service Provider** is deleted in its entirety and replaced with the following:

Service Provider means an individual or entity that is not an **Insured** and provides the following to an **Insured Organization** pursuant to a written contract or written agreement:

- a. maintain, managing, or controlling **Computer Systems**;
- b. hosting or facilitating the **Insured Organization's** website;
- c. any individual or entity providing administrative functions, human resources, marketing, or other outsourced services to an **Insured**; or
- d. non-information technology goods or services upon which the **Insured Organization** is dependent to perform its business operations.

Service Provider does not include an internet service provider (including, but not limited to, a provider of internet connectivity), public utility (including, but not limited to, an electric, gas, water or telecommunications service provider), or securities exchange or market.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.

Endorsement Number	Effective Date of Endorsement	Policy Number
NCP 0099	02/20/2026	

PRIOR KNOWLEDGE EXCLUSION ENDORSEMENT

This endorsement modifies insurance provided under the following:

NEXUS CYBER POLICY

In consideration of the premium charged, it is hereby understood and agreed that the Policy is amended as follows:

1. Section V. EXCLUSIONS, subsection X. Prior Knowledge and Pending Matters is deleted in its entirety and replaced with the following:

X. Prior Knowledge and Pending Matters

This Policy does not apply to any **Claim, Event, Extortion Event, Ransomware Threat** or **Loss** based upon, arising out of or attributable to any actual or alleged:

1. **Incident** that any member of **Management** knew or could reasonably have foreseen on or before the inception date of the first NEXUS Cyber Policy issued by the **Insurer** might be the basis of a **Claim** or **Loss** under this Policy;
2. **Privacy and Security Incident, Cyber Incident, Information Security Breach, Multimedia Wrongful Act, Event, Extortion Event, or Ransomware Threat** which was the subject of any written notice given under any insurance policy of which this Policy is a renewal or replacement, or which it succeeds in time;
3. **Privacy and Security Incident, Cyber Incident, Information Security Breach, Multimedia Wrongful Act, Event, Extortion Event, or Ransomware Threat** which was the subject of any written demand, suit, proceeding, order, inquiry or investigation pending against any **Insured** on or prior to the inception date of this Policy; or
4. Acts, errors, omissions, facts, circumstances, situations, events, transactions, or **Related Acts** that were known to any member of **Management** prior to the inception date of this Policy and were not disclosed to the **Insurer** in the **Application**.
5. The following specific **Incident(s)**, matter(s), or circumstance(s):
5/10/2023 - financial fraud/data breach

However, this exclusion shall not apply to any **Claim, Event, Extortion Event, Ransomware Threat or Loss** that would otherwise be covered under this Policy and that arises from a **Privacy and Security Incident, Cyber Incident, Information Security Breach, Multimedia Wrongful Act, Event, Extortion Event, or Ransomware Threat** that:

- a) was specifically disclosed to the **Insurer** in writing in the **Application** for this Policy or any prior policy of which this Policy is a renewal; and
- b) the **Insurer** has expressly agreed in writing to provide coverage for such **Privacy and Security Incident, Cyber Incident, Information Security Breach, Multimedia Wrongful Act, Event, Extortion Event, or Ransomware Threat**.

All other terms and conditions of this Policy remain unchanged.

This endorsement forms a part of the Policy to which attached, effective on the inception date of the Policy unless otherwise stated herein.



SOUTH DAKOTA SURPLUS LINES NOTICE

THIS INSURANCE CONTRACT IS ISSUED BY A NONADMITTED INSURER WHICH IS NOT LICENSED BY NOR UNDER THE JURISDICTION OF THE SOUTH DAKOTA INSURANCE DIRECTOR.

LMA9077
01 September 2013

SERVICE OF SUIT CLAUSE (U.S.A.)

It is agreed that in the event of the failure of the Underwriters hereon to pay any amount claimed to be due hereunder, the Underwriters hereon, at the request of the (Re)Insured, will submit to the jurisdiction of a Court of competent jurisdiction within the United States. Nothing in this Clause constitutes or should be understood to constitute a waiver of Underwriters' rights to commence an action in any Court of competent jurisdiction in the United States, to remove an action to a United States District Court, or to seek a transfer of a case to another Court as permitted by the laws of the United States or of any State in the United States.

It is further agreed that service of process in such suit may be made upon:

**Lloyd's America, Inc.
Attention: Legal Department
280 Park Avenue, East Tower, 25th Floor
New York, NY 10017**

The above-named are authorized and directed to accept service of process on behalf of Underwriters in any such suit and Underwriters will abide by the final decision of such Court in respect of that suit, or of any Appellate Court in the event of an appeal.

Further, pursuant to any statute of any state, territory or district of the United States which makes provision therefor, Underwriters hereon hereby designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or their successor or successors in office, as their true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the (Re)insured or any beneficiary hereunder arising out of this (re)insurance, and hereby designate the above-named as the person to whom the said officer is authorized to mail such process or a true copy thereof.

This Service of Suit Clause will not be read to conflict with or override the obligations of the parties to arbitrate their disputes, if applicable, as provided for in any arbitration provision within this (re)insurance. Where there is an arbitration provision within this (re)insurance, the provisions of this Clause shall operate as an aid to compelling or enforcing such arbitration or arbitral award only and not as an alternative to any arbitration provision for resolving disputes arising out of this (re)insurance.

LMA5020A

07/04/2025

SEVERAL LIABILITY CLAUSE

PLEASE NOTE – This notice contains important information. PLEASE READ CAREFULLY

The liability of an insurer under this contract is several and not joint with other insurers party to this contract. An insurer is liable only for the proportion of liability it has underwritten. An insurer is not jointly liable for the proportion of liability underwritten by any other insurer. Nor is an insurer otherwise responsible for any liability of any other insurer that may underwrite this contract.

The proportion of liability under this contract underwritten by an insurer (or, in the case of a Lloyd's syndicate, the total of the proportions underwritten by all the members of the syndicate taken together) is shown in this contract.

In the case of a Lloyd's syndicate, each member of the syndicate (rather than the syndicate itself) is an insurer. Each member has underwritten a proportion of the total shown for the syndicate (that total itself being the total of the proportions underwritten by all the members of the syndicate taken together). The liability of each member of the syndicate is several and not joint with other members. A member is liable only for that member's proportion. A member is not jointly liable for any other member's proportion. Nor is any member otherwise responsible for any liability of any other insurer that may underwrite this contract. The business address of each member is Lloyd's, One Lime Street, London EC3M 7HA. The identity of each member of a Lloyd's syndicate and their respective proportion may be obtained by writing to Market Services, Lloyd's, at the above address.

Although reference is made at various points in this clause to "this contract" in the singular, where the circumstances so require this should be read as a reference to contracts in the plural.

LMA5096 (Combined Certificate)

7 March 2008

Complaints

Every effort is made to ensure you receive a high standard of service. If you are not satisfied with the service you have received, you should contact us at:

Address:

Suite 210, 566 West Adams Street
Chicago, Illinois, 60661, U.S.A

Phone: +1(888) 528 2080

Email: compliance@nexusunderwriting.com

When contacting us, please include your policy/claim number and policyholder name for faster service.

We will work to resolve any issues directly with you. If we cannot reach a satisfactory resolution, you may be eligible to escalate your complaint to the Lloyd's Complaints team:

Lloyd's Complaints Contact Information:

Email: complaints@lloyds.com

Website: www.lloyds.com/complaints

Information about Lloyd's complaints procedures are set out in the "Your Complaint - How We Can Help" leaflet available at www.lloyds.com/complaints.



Insured Name: DAKOTALAND FEEDS, L.L.C. Policy/Quote Number: O5196DCYA260
Insured Address: 674 WESTPARK AVE, HURON, SD 57350

**POLICYHOLDER DISCLOSURE NOTICE OF
TERRORISM INSURANCE COVERAGE**

You are hereby notified that under the Terrorism Risk Insurance Act (the Act), as amended, you have a right to purchase insurance coverage for losses resulting from acts of terrorism, as defined in Section 102(1) of the Act: The term "act of terrorism" means any act or acts that are certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security, and the Attorney General of the United States - to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of an air carrier or vessel or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

YOU SHOULD KNOW THAT WHERE COVERAGE IS PROVIDED BY THIS POLICY FOR LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM, SUCH LOSSES MAY BE PARTIALLY REIMBURSED BY THE UNITED STATES GOVERNMENT UNDER A FORMULA ESTABLISHED BY FEDERAL LAW. HOWEVER, YOUR POLICY MAY CONTAIN OTHER EXCLUSIONS WHICH MIGHT AFFECT YOUR COVERAGE, SUCH AS AN EXCLUSION FOR NUCLEAR EVENTS. UNDER THE FORMULA, THE UNITED STATES GOVERNMENT GENERALLY REIMBURSES 85% THROUGH 2015; 84% BEGINNING ON JANUARY 1, 2016; 83% BEGINNING ON JANUARY 1, 2017; 82% BEGINNING ON JANUARY 1, 2018; 81% BEGINNING ON JANUARY 1, 2019 AND 80% BEGINNING ON JANUARY 1, 2020, OF COVERED TERRORISM LOSSES EXCEEDING THE STATUTORILY ESTABLISHED DEDUCTIBLE PAID BY THE INSURANCE COMPANY PROVIDING THE COVERAGE. THE PREMIUM TO BE CHARGED FOR THIS COVERAGE IS PROVIDED BELOW AND DOES NOT INCLUDE ANY CHARGES FOR THE PORTION OF LOSS THAT MAY BE COVERED BY THE FEDERAL GOVERNMENT UNDER THE ACT.

YOU SHOULD ALSO KNOW THAT THE TERRORISM RISK INSURANCE ACT, AS AMENDED, CONTAINS A \$100 BILLION CAP THAT LIMITS U.S. GOVERNMENT REIMBURSEMENT AS WELL AS INSURERS' LIABILITY FOR LOSSES RESULTING FROM CERTIFIED ACTS OF TERRORISM WHEN THE AMOUNT OF SUCH LOSSES IN ANY ONE CALENDAR YEAR EXCEEDS \$100 BILLION. IF THE AGGREGATE INSURED LOSSES FOR ALL INSURERS EXCEED \$100 BILLION, YOUR COVERAGE MAY BE REDUCED.

SELECTION OR REJECTION OF TERRORISM INSURANCE COVERAGE The prospective premium required for your terrorism coverage is: \$0.

If you wish to reject this offer of coverage, you should check the box below, sign this notice and send it to your agent. An exclusion of terrorism losses, as defined by the Act, will then be made part of your policy.



	I hereby reject the offer of terrorism coverage. I understand that I will have no coverage for losses arising from acts of terrorism, as defined in the act.
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_____	Syndicates at Lloyd's. On behalf of Certain Underwriters at Lloyd's
Policyholder/Applicant's Signature	Insurance Company

_____	_____
Print Name	Date

If you have any questions about this notice, please contact your agent

SURPLUS LINES BROKER LICENSE DETAIL

This surplus lines policy has been procured by the following licensed surplus lines broker:

Signature of Licensed Surplus Lines Broker or Authorized Representative

Printed Name of Licensed Surplus Lines Broker

Address of Surplus Lines Broker

License Number of Surplus Lines Broker